Republic of the Philippines
City of Davao
Office of the Sangguniang Panlungsod
20th City Council
Committee Legislative Hearing Draft
Series of 2026

PRESENT:

Vice Mayor J. Melchor B. Quitain Jr.	- Presiding Officer
Councilor Marissa S. Abella	Councilor Louie John J. Bonguyan
Councilor Nilo M. Abellera Jr.	Councilor Pilar C. Braga
Councilor Luna Maria Dominique S. Acosta	Councilor Jonard C. Dayap
Councilor Bernard E. Al-ag	Councilor Edgar P. Ibuyan Jr.
Councilor Wilberto E. Al-ag	Councilor Richlyn N. Justol-Baguilod
Councilor Al Ryan S. Alejandre	Councilor Diosdado Angelo Junior R. Mahipus
Councilor Dante L. Apostol Sr.	Councilor Bonz Andre A. Militar
Councilor Conrado C. Baluran	Councilor Temujin B. Ocampo
Councilor Jessica M. Bonguyan	Councilor Myrna G. L'Dalodo-Ortiz

ABSENT:

Councilor Alberto T. Ungab	- On Official Business
Councilor Lorenzo Benjamin D. Villafuerte	- On Leave

PROPOSED ORDINANCE NO. 2026-07, SERIES OF 2026

Series of 2026

AN ORDINANCE REGULATING WASTE DISCHARGE AND ENVIRONMENTAL SANITATION IN COASTAL WATERS, PORT WHARVES, AND DOCKING FACILITIES, PRESCRIBING PORT SANITATION STANDARDS, AND PROVIDING PENALTIES FOR VIOLATIONS THEREOF IN THE CITY OF DAVAO

Be it ordained by the Sangguniang Panlungsod of Davao City, in session assembled, that:

SECTION 1. TITLE - This Ordinance shall be known and cited as the 'Coastal Port Sanitation and Marine Pollution Prevention Ordinance of Davao City'.

SECTION 2. DECLARATION OF POLICY - Under Section 16 of Republic Act No. 7160 (The Local Government Code of 1991), local government units shall enhance the right of the people to a balanced ecology and protect the environment within their territorial boundaries.

It is hereby declared the policy of the City Government of Davao to maintain clean coastal waters, prevent marine pollution, and regulate the disposal of waste from vessels and port docking facilities along the shores and wharves of Davao City.

SECTION 3. DEFINITION OF TERMS - As used in this Ordinance, the following terms shall mean:

(a) Coastal Waters - refers to the municipal waters, foreshore areas, and marine waters within the territorial jurisdiction of Davao City;

(b) Commercial Vessel - refers to motorized cargo ships, passenger vessels, tugboats, and commercial fishing vessels docking in city ports;

(c) Bilge Water - refers to water that collects in the lowest compartment of a ship's hull, frequently containing oil and chemical residues;

(d) Port Wharves - refers to Santa Ana Wharf, Sasa Port, and private docking wharves operating in Davao City;

(e) City ENRO - refers to the City Environment and Natural Resources Office.

SECTION 4. PROHIBITION OF BILGE WATER AND UNTREATED WASTE DISCHARGE - No commercial vessel, motorboat, barge, or watercraft shall pump, discharge, or dump untreated bilge water, dirty engine oils, sewage, or garbage into the coastal waters, foreshore zones, or harbor waters of Davao City.

All vessels docked at city wharves must utilize approved shore reception facilities or private waste haulers accredited by the City ENRO for bilge water disposal.

SECTION 5. PORT FACILITY WASTE RECEPTACLES AND RECEPTION - All operators of public and private port wharves, landing stages, and ferry terminals shall provide segregated waste collection bins for biodegradable, recyclable, and hazardous waste generated by docking vessels and passengers.

Port operators shall maintain regular collection schedules with City ENRO solid waste collection personnel to prevent trash accumulation.

SECTION 6. MANDATORY HARBOR SANITATION CLEARANCE - Commercial vessels berthing at city wharves for more than twenty-four (24) hours must secure a Harbor Sanitation Clearance from the City ENRO prior to departure, certifying that no illegal discharge of waste occurred during their stay.

A reasonable inspection fee of Five Hundred Pesos (Php 500.00) shall be collected by the City Treasurer for each sanitation inspection.

SECTION 7. IMPLEMENTING AND MONITORING AGENCIES - The City ENRO, in coordination with the Philippine Coast Guard (Coast Guard Station Davao), the PNP Regional Maritime Unit XI, and the City Legal Office, shall be responsible for enforcing the provisions of this Ordinance.

Authorized inspectors may board vessels docked at wharves to inspect waste storage logs and ensure compliance with environmental regulations.

SECTION 8. SPECIAL SANCTIONS ON COMMERCIAL VESSELS - Any commercial cargo vessel, passenger vessel, or motorized watercraft found discharging untreated bilge water, dirty ballast, or solid waste into the coastal waters, wharves, or docking facilities of Davao City shall be assessed an

administrative fine of Fifty Thousand Pesos (Php 50,000.00) per day of continued violation.

The City Government, through the City Legal Office and port authorities, is hereby authorized to summarily impound and attach the vessel until all assessed fines and clean-up costs are fully paid.

SECTION 9. CLEAN-UP AND REMEDIATION RESPONSIBILITY - In addition to administrative penalties, the owner or operator of any vessel that discharges oil, bilge, or hazardous pollutants shall be solely responsible for the immediate containment and clean-up of the spilled materials at their own expense.

Failure to perform clean-up operations within twelve (12) hours shall authorize the City to hire emergency response contractors and bill the expenses to the vessel owner.

SECTION 10. PENALTIES FOR INDIVIDUALS AND STEVEDORES - Any individual, passenger, crew member, or port laborer who intentionally throws garbage, plastic waste, or debris into coastal waters or wharves shall be penalized with a fine of One Thousand Pesos (Php 1,000.00) or eight (8) hours of coastal clean-up community service for the first offense, and Three Thousand Pesos (Php 3,000.00) for subsequent offenses.

SECTION 11. APPROPRIATION - The City Government of Davao shall allocate sufficient funds in its annual budget to support coastal water quality monitoring equipment, harbor patrol logistics, and marine sanitation enforcement.

SECTION 12. SEPARABILITY CLAUSE - If any provision of this Ordinance is declared invalid or unconstitutional, the remaining provisions not affected thereby shall continue in full force and effect.

SECTION 13. EFFECTIVITY - This Ordinance shall take effect fifteen (15) days after its complete publication in a newspaper of local circulation in Davao City.

ENACTED on Committee Review, by the Sangguniang Panlungsod of Davao City.

CERTIFIED CORRECT:

CHARITO N. SANTOS
Secretary to the Sangguniang Panlungsod
(City Government Department Head II)

ATTESTED:

J. MELCHOR B. QUITAIN JR.
Vice Mayor
Presiding Officer

APPROVED: _____, 2026

SEBASTIAN Z. DUTERTE
City Mayor

ATTESTED:

ATTY. FRANCIS MARK H. LAYOG
Acting City Administrator